

MANY QUESTIONS A night bazaar in Ahmedabad

MAYUR BHATT

▶ GUJARAT

NO WATCHMAN FOR THE NEW NIGHT BAZAAR

Gujarat allows shops to open 24x7, but its experiment with Ease of Doing Business may be laxity by law

scores of absurd byelaws that choke entrepreneurship in India. In sync with that, this law replaces government pre-approval and inspection with businesses self-certifying that they meet fire safety, labour security and registration norms. Sceptics feel it shifts from hyper-control to laissez faire in one fell swoop, and call for a rethink—preferably before an adverse incident.

FREEDOM, WITH CURBS

The idea has history. In 2019, the Vijay Rupani government had permitted all commercial establishments within corporation limits, or near national highways, railway stations, transport depots, hospitals and petrol pumps, to function 24x7. Shops elsewhere were allowed 6 am to 2 am. At the time, then deputy CM Nitin Patel had said women would not be employed on night shifts. In the seven years since, only a handful of establishments used the window, usually around festivals. In 2026, both the restrictions set then are gone. So is the need for physical verification by a government officer to monitor fire safety, labour security etc.

A retail industry veteran, requesting anonymity, says the law targets the 2030 Commonwealth Games. The 2036 Olympics dream too calls for Ahmedabad to be functional 24x7. "The idea is to get businesses used to operating multiple shifts. Allowing women to work in night shifts also removes markers of gender discrimination and makes tourists and visitors feel safe," he says. The relaxation, he adds gently, might well be an escape mechanism for the government—it anyway lacks the resources and personnel for efficient coverage. So we get de jure laxity.

Dilip Thakkar, Ahmedabad chapter co-head of the National Restaurant Association, doesn't expect the law to change much. Gujarat's cities, he says, don't have a late-night dining or shopping culture to begin with, and the economics work against it. A third shift means additional wage costs, with no matching footfalls to justify them. "All-nighters are pulled only by roadside tea stalls and fast food joints," he says.

Takeaways

- **Gujarat allows all-night shopping with new bill**
- **Fire safety, security, labour norms left to 'self-regulation'**
- **One eye on Commonwealth Games; sceptics pick holes**

BABY AND BATHWATER

The sharpest concern comes from labour activists, who see self-certification, paired with softer penalties, as tilted against workers. "Making life simple for MSMEs is welcome, but we need guardrails for labour," says Vipul Pandya, general secretary, Bandhkaam Mazdoor Sangathan. Citing a clause that grants mid-level officers quasi-judicial authority to sign off on settlements for "compounded offences", he says it practically invites corruption, with little deterrent against violations—keeping alive the vice that befouls regulatory regimes, while taking away their protective role.

The bill does have scope for filing complaints, but Pandya, too, flags the lack of staff and feels this is abdication dressed up as reform. A city that never sleeps is a fine idea—if it's awake to the thought that nearly 40 per cent of its citizenry are the labour class. 'Citizen-friendly' needs to square with that. ■